

- RAG Learning

1.5 Devolution

Politics — AQA (7152) — Paper 1 (Government and Politics of the UK)

Devolution is the transfer of powers from central government to subnational legislatures, where **legal sovereignty is retained by the centre**. That last clause is the whole topic: it is what separates devolution from federalism, and what every evaluative question ultimately turns on.

Devolution vs federalism. Devolved powers are *delegated* by a sovereign Parliament that legally retains the right to amend or reclaim them. Federal powers are *constitutionally divided* and entrenched, so the centre cannot remove them. The UK is therefore not federal — but because reclaiming devolved powers would be politically near-impossible, it is often called **quasi-federal**.

1. The settlements

	Scotland	Wales	Northern Ireland
Body	Scottish Parliament	Senedd (Welsh Parliament)	Northern Ireland Assembly
Created	Scotland Act 1998	Government of Wales Act 1998	Northern Ireland Act 1998, under the Good Friday Agreement
Electoral system	Additional Member System	Additional Member System	Single Transferable Vote
Model	Reserved powers from the outset	Conferred powers until the Wales Act 2017	Reserved powers

		moved it to reserved powers	
Distinctive features	Income tax rates and bands; significant welfare powers (Scotland Act 2016)	Initially secondary legislation only; primary powers from 2011	Mandatory power-sharing; policing and justice devolved 2010

Reserved vs devolved matters

- **Reserved** (Westminster): defence, foreign affairs, immigration, the constitution, most macroeconomic policy, and — importantly — equality law.
- **Devolved**: health, education, housing, transport, the environment, local government, and in Scotland substantial tax powers.

2. England — the missing piece

England, with around 85 per cent of the UK population, has **no devolved legislature**. English devolution has instead proceeded through directly elected **metro mayors** and combined authorities, which hold far weaker powers than the national settlements.

The West Lothian question

Why should Scottish MPs at Westminster vote on matters affecting only England, when English MPs cannot vote on the equivalent devolved Scottish matters?

EVEL (English Votes for English Laws), introduced 2015, gave English MPs a veto stage over England-only legislation. It was **abandoned as unworkable in 2021**: certifying which bills were England-only proved contentious, and the Barnett formula means almost any English spending decision has consequences elsewhere.

3. Asymmetry

The UK settlement is **asymmetric** in three distinct ways:

1. **Different powers** — Scotland has the most extensive settlement, Wales acquired primary powers much later, Northern Ireland has policing and justice.
2. **Different structures** — Northern Ireland operates mandatory power-sharing; Scotland and Wales operate conventional majoritarian executives.
3. **England excluded** — no national legislature at all.

Because each settlement was negotiated separately and has been repeatedly renegotiated — 2012, 2016, 2017, and again after Brexit — there is no UK-wide constitutional design from which anomalies can be principled resolved.

4. The Sewel Convention

Sewel Convention — Westminster will not *normally* legislate on devolved matters without the consent of the relevant devolved legislature, expressed through a legislative consent motion.

The convention was written into statute by the **Scotland Act 2016** and **Wales Act 2017**, which appeared to strengthen it considerably. But in **Miller I (2017)** the Supreme Court held that it remained a **political convention the courts would not enforce**. Putting a convention into statute did not make it legally binding.

The word "normally" has done a great deal of work. Consent was **withheld** for the EU Withdrawal legislation and the **UK Internal Market Act 2020**, and Westminster proceeded regardless.

Exam Tip: Sewel is the single clearest illustration of the topic's central point. The devolved bodies have real democratic mandates and substantial powers — but when Westminster chose to override them, they had **no legal remedy, only political protest**. That is exactly what "not federal" means in practice, and it is why the post-Brexit period did lasting damage to intergovernmental relations.

5. Funding: the Barnett formula

- Adjusts each nation's block grant in proportion to changes in comparable spending in England, weighted by population share.
- It allocates **changes**, not the baseline — so historic disparities persist.
- Distributes by **population rather than assessed need**, producing per-head differences criticised from several directions at once: Wales argues it is underfunded relative to need, while English critics point to higher per-head spending in Scotland.
- Intended as a temporary measure in the late 1970s; still in use.

6. Northern Ireland: power-sharing and instability

Under the **Good Friday (Belfast) Agreement 1998**:

- The Executive must include both unionist and nationalist parties.
- The First Minister and deputy First Minister hold **equal power** and their offices are linked — if one resigns, the other's office falls.
- Key Assembly decisions require cross-community consent.

The consequence: either community's largest party can collapse the institutions by withdrawing, and no alternative government can be formed without it. Suspensions have followed — the Renewable Heat Incentive dispute (2017–2020, three years) and the DUP's withdrawal over the Northern Ireland Protocol (2022–2024, around two years).

Assessment: this was a deliberate trade-off. Guaranteeing both communities a share of power was essential to the peace settlement, and majoritarian government had failed catastrophically before 1972. The cost is structural fragility, and prolonged suspension leaves Northern Ireland run by civil servants without ministerial direction.

7. Policy divergence

Policy	Divergence
Tuition fees	Abolished for Scottish students at Scottish universities; up to £9,250 in England; a distinct Welsh system

Prescription charges	Abolished in Scotland, Wales and Northern Ireland; retained in England
Social care	Free personal care for the elderly in Scotland
NHS structure	Scotland and Wales declined the English internal-market reforms
Alcohol pricing	Minimum unit pricing in Scotland and Wales
COVID-19	Divergent lockdown rules and timings — which made devolution unusually visible to the public

Divergence demonstrates that devolution transferred **real power**, not administrative discretion. It also creates pressure, since English voters observe policies unavailable to them.

8. Has devolution strengthened or weakened the Union?

Strengthened	Weakened
Gave the nations meaningful self-government <i>within</i> the UK, removing the argument that only independence could deliver distinctive policy	Created national institutions, parties and media around which distinct political identities consolidated
The 2014 Scottish referendum produced a No vote on an 85 per cent turnout	Gave nationalist parties a platform <i>and a record of government</i> , transforming the SNP from protest vehicle to party of government
Proportional systems produce coalition and compromise rather than nationalist dominance	Brexit created competing mandates: Scotland and NI voted Remain while the UK voted Leave
Repeated transfers of further powers have responded to demand	Continual renegotiation suggests an unstable process rather than a settled endpoint

9. Brexit and the devolution settlement

Returning EU competences in devolved fields — agriculture, fisheries, environmental standards — raised the question of whether they should pass to the devolved bodies or be held centrally to protect a UK internal market.

Westminster legislated through the **UK Internal Market Act 2020** over the objections of both the Scottish Parliament and the Senedd. In Edinburgh and Cardiff this was seen as unilateral recentralisation. The **Northern Ireland Protocol**, meanwhile, created trade friction within the UK that unionists strongly opposed, contributing directly to the Assembly's two-year suspension.

Key terms

Term	Definition
Devolution	Transfer of powers to subnational bodies, with legal sovereignty retained centrally
Reserved matter	A power retained by Westminster on which devolved bodies may not legislate
Reserved-powers model	Anything not expressly reserved is devolved
Sewel Convention	Westminster will not normally legislate on devolved matters without consent
Legislative consent motion	The vote by which a devolved legislature grants or withholds that consent
Barnett formula	Population-based mechanism for adjusting devolved block grants
Asymmetric devolution	Different powers and structures across the nations, with England excluded

Quasi-federalism	Devolved powers so politically entrenched that reclaiming them is impractical, though legally possible
West Lothian question	Whether MPs from devolved nations should vote on England-only matters

Essential examples

- **Scotland Act 2016** — income tax powers; declared the Parliament "permanent".
- **Miller I (2017)** — Sewel judicially unenforceable despite statutory recognition.
- **UK Internal Market Act 2020** — passed over withheld consent from Scotland and Wales.
- **2014 independence referendum** — 55/45 No, on ~85 per cent turnout.
- **NI Assembly suspensions** — 2017–2020 (RHI) and 2022–2024 (Protocol).
- **EVEL 2015–2021** — introduced and abandoned.
- **COVID-19 divergence** — four different sets of rules across the UK.